

[*148] quest, be to a *person "upon trust," and no trust declared (*a*), or the bequest be to a person named as executor "to enable him to carry into effect the trusts of the will," and no trust is declared (*b*), or the grant, devise, or bequest be upon certain trusts that are too vague to be executed (*c*), or upon trusts to be thereafter declared, and no declaration is ever made (*d*), or upon trusts that are void for unlawfulness (*e*), [or uncertainty (*f*),] or that fail by lapse (*g*), &c.; for in these and the like cases the trustee can have

(*a*) *Dawson v. Clarke*, 18 Ves. 254, *per* Lord Eldon; *Southouse v. Bate*, 2 V. & B. 396; *Morice v. Bishop of Durham*, 10 Ves. 537; *Woollett v. Harris*, 5 Mad. 452; *Pratt v. Sladden*, 14 Ves. 198; *Dunnage v. White*, 1 Jac. & Walk. 583; *Goodere v. Lloyd*, 3 Sim. 538; *Anon. Case*, 1 Com. 345; *Penfold v. Bouch*, 4 Hare, 271; *Corporation of Gloucester v. Wood*, 3 Hare, 131; 1 H. Lds. Cas. 272; *Attorney-General v. Dean and Canons of Windsor*, 24 Beav. 679; *S. C. in D. P.* 8 H. Lds. Cas. 369; *Welford v. Stokoe*, W. N. 1867, p. 208; *Aston v. Wood*, 6 L. R. Eq. 419; *Candy v. Candy*, W. N. 1872, p. 168; *Yeap Cheah Neo v. Ong Cheng Neo*, 6 L. R. P. C. 381.

(*b*) *Barrs v. Fewke*, 2 H. & M. 60.

(*c*) *Fowler v. Garlike*, 1 R. & M. 232; *Morice v. Bishop of Durham*, 9 Ves. 399; *S. C.* 10 Ves. 522; *Stubbs v. Sargon*, 2 Keen, 255; *S. C.* 3 M. & C. 507; *Kendall v. Granger*, 5 Beav. 300; *Leslie v. Devonshire*, 2 B. C. C. 187; *Vezev v. Jamson*, 1 Sim. & Stu. 69; and see *Ellis v. Selby*, 7 Sim. 352; *S. C.* 1 M. & C. 286; *Williams v. Kershaw*, 5 Cl. & Fin. 111; [*Copinger v. Crehane*, 11 I. R. Eq. 429; *Re Jarman's Estate*, 8 Ch. D. 584.]

(*d*) *Emblin v. Freeman*, Pr. Ch. 541; *City of London v. Garway*, 2 Vern. 571; *Collins v. Wakeman*, 2 Ves. jun. 683; *Fitch v. Weber*, 6 Hare, 145; and see *Brown v. Jones*, 1 Atk. 188; *Sidney v. Shelley*, 19 Ves. 352; *Brookman v. Hales*, 2 V.

& B. 45; *Biddulph v. Williams*, 1 Ch. D. 203.

(*e*) *Carrick v. Errington*, 2 P. W. 361; *Arnold v. Chapman*, 1 Ves. 108; *Tregonwell v. Sydenham*, 3 Dow, 194; *Jones v. Mitchell*, 1 S. & S. 290; *Gibbs v. Rumsey*, 2 V. & B. 294; *Page v. Leapingwell*, 18 Ves. 463; *Pilkington v. Boughy*, 12 Sim. 114; *Morris v. Owen*, W. N. 1875, p. 134; and see *Cooke v. The Stationer's Company*, 3 M. & K. 262. If an estate be devised to A. and his heirs, in trust to sell and pay part of the proceeds to persons capable of taking, and other part to a charity, the statute of mortmain does not avoid the whole legal devise, but affects only the interest given to the charity; *Young v. Grove*, 4 Com. B. Re. 668; *Doe v. Harris*, 16 Mees. & W. 517. [The interest of a partner in the partnership property, so far as it arises from the proceeds of real estate belonging to the partnership, is within the statute of mortmain, *Ashworth v. Munn*, 15 Ch. D. 363.]

[(*f*) *Scott v. Brownrigg*, 9 L. R. Ir. 246, where a trust for "missionary purposes" was held too vague to be enforced.]

(*g*) *Ackroyd v. Smithson*, 1 B. C. C. 503; *Spink v. Lewis*, 3 B. C. C. 355; *Williams v. Coade*, 10 Ves. 500; *Digby v. Legard*, cited *Cruse v. Barley*, 3 P. W. 22, note by Cox (1); *Hutcheson v. Hammond*, 3 B. C. C. 128; *Davenport v. Colman*, 12 Sim. 610; *Muckleston v. Brown*, 6 Ves. 63.